



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2006: sample ballots; mailing date

KUPPER FLOOR AMENDMENT

1. Specifies that, for counties *with* a U.S. Postal Service (USPS) distribution center, the board of supervisors must have printed and must mail sample ballots at least 11 days before a primary or general election.
2. Requires that, for counties *without* a USPS distribution center, the board of supervisors must have printed and must mail sample ballots at least 14 days before a primary or general election.
3. Directs the Secretary of State to annually determine and publish a list of counties that do not contain a USPS distribution center based on information provided by USPS.

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2006
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-461, Arizona Revised Statutes, is amended to
3 read:

4 16-461. Sample primary election ballots; submission to party
5 chairmen for examination; preparation, printing and
6 distribution of ballot

7 A. At least forty-five days before a primary election, the officer
8 in charge of that election shall:

9 1. Prepare a proof of a sample ballot.

10 2. Submit the sample ballot proof of each party to the county
11 chairman or in city or town primaries to the city or town chairman.

12 3. Mail a sample ballot proof to each candidate for whom a
13 nomination paper and petitions have been filed.

14 B. Within two calendar days after receipt of the sample ballot, the
15 county chairman of each political party and any candidate in that election
16 who has submitted and confirmed an email address shall suggest to the
17 election officer any change the chairman or candidate considers should be
18 made in the chairman's or candidate's party ballot, and if on examination
19 the election officer finds an error or omission on the ballot, the officer
20 shall correct it. The election officer shall print and distribute the
21 sample ballots as required by law, shall maintain a copy of each sample
22 ballot and shall post a notice indicating that sample ballots are
23 available on request. The official sample ballot shall be printed on
24 colored paper or white paper with a different colored stripe for each
25 party that is represented on that ballot. For voters who are not
26 registered with a party that is entitled to continued representation on
27 the ballot pursuant to section 16-804, the election officer may print and

1 distribute the required sample ballots in an alternative format, including
2 a reduced size format.

3 C. Not later than forty days before a primary election, the county
4 chairman of a political party may request one sample primary election
5 ballot of the chairman's party for each election precinct.

6 D. The board of supervisors shall have printed mailer-type sample
7 ballots for a primary election and shall mail at least ~~eleven~~ **FOURTEEN**
8 days before the election[., OR AT LEAST ELEVEN DAYS BEFORE THE ELECTION IN
9 COUNTIES THAT CONTAIN A UNITED STATES POSTAL SERVICE PROCESSING AND
10 DISTRIBUTION CENTER.] one sample ballot of a political party to each
11 household containing a registered voter of that political party unless
12 that registered voter is on the active early voting list established
13 pursuant to section 16-544. Each sample ballot shall contain the
14 following statement: "This is a sample ballot and cannot be used as an
15 official ballot under any circumstances". A certified claim shall be
16 presented to the secretary of state by the board of supervisors for the
17 actual cost of printing, labeling and postage of each sample ballot
18 actually mailed, and the secretary of state shall direct payment of the
19 authenticated claim from funds of the secretary of state's office. [THE
20 SECRETARY OF STATE SHALL ANNUALLY DETERMINE AND PUBLISH A LIST OF COUNTIES
21 THAT DO NOT CONTAIN A UNITED STATES POSTAL SERVICE PROCESSING AND
22 DISTRIBUTION CENTER BASED ON INFORMATION PROVIDED BY THE UNITED STATES
23 POSTAL SERVICE.]

24 E. For city and town elections, the governing body of a city or
25 town may have printed mailer-type sample ballots for a primary election.
26 If the city or town has printed such sample ballots, the city or town
27 shall provide for the distribution of such ballots and shall bear the
28 expense of printing and distributing such sample ballots.

29 F. The return address on the mailer-type sample ballots ~~shall~~ **MAY**
30 not contain the name of an appointed or elected public officer, ~~nor may~~
31 **AND** the name of an appointed or elected public officer **MAY NOT** be used to
32 indicate who produced the sample ballot.

33 G. The great seal of the state of Arizona shall be imprinted along
34 with the words "official voting materials" on the mailing face of each
35 sample ballot. In county, city or town elections the seal of such
36 jurisdiction shall be substituted for the state seal.

37 Sec. 2. Section 16-510, Arizona Revised Statutes, is amended to
38 read:

39 16-510. Sample ballots; preparation and distribution

40 A. Before printing the sample ballots for the general election the
41 board of supervisors shall send to each candidate whose name did not
42 appear on the preceding primary election ballot and to the county
43 chairperson of each political party a ballot proof of the sample ballot
44 for the candidate's and chairperson's review. Within two calendar days
45 after receipt of the sample ballot, those candidates and the county
46 chairperson of each political party shall suggest to the election officer
47 any change the candidate or chairperson considers should be made to the

1 ballot, and if on examination the election officer finds an error or
2 omission on the ballot, the officer shall correct the error or omission.

3 B. The board of supervisors shall print and distribute, for the
4 information of voters at each polling place, a number of sample ballots as
5 it deems necessary.

6 C. The board of supervisors shall have printed mailer-type sample
7 ballots for a general election and shall mail at least ~~eleven~~ FOURTEEN
8 days before the election[, OR AT LEAST ELEVEN DAYS BEFORE THE ELECTION IN
9 COUNTIES THAT CONTAIN A UNITED STATES POSTAL SERVICE PROCESSING AND
10 DISTRIBUTION CENTER.] one such sample ballot to each household in the
11 county containing a registered voter unless that registered voter is on
12 the active early voting list established pursuant to section 16-544. Each
13 sample ballot shall contain the following statement: "This is a sample
14 ballot and cannot be used as an official ballot under any
15 circumstances". A certified claim shall be presented to the secretary of
16 state by the board of supervisors for the actual cost of printing,
17 labeling and postage of each sample ballot actually mailed, and the
18 secretary of state shall direct payment of the authenticated claim from
19 funds of the secretary of state's office. [THE SECRETARY OF STATE SHALL
20 ANNUALLY DETERMINE AND PUBLISH A LIST OF COUNTIES THAT DO NOT CONTAIN A
21 UNITED STATES POSTAL SERVICE PROCESSING AND DISTRIBUTION CENTER BASED ON
22 INFORMATION PROVIDED BY THE UNITED STATES POSTAL SERVICE.]

23 D. For city and town elections, the governing body of a city or
24 town may have printed mailer-type sample ballots for a general
25 election. If the city or town has printed such sample ballots, the city
26 or town shall provide for the distribution of such ballots and shall bear
27 the expense of printing and distributing such sample ballots.

28 E. For special district elections, the governing body of a special
29 district may have printed mailer-type sample ballots. If the special
30 district has printed such sample ballots, the special district shall
31 provide for the distribution of such ballots and shall bear the expense of
32 printing and distributing such sample ballots.

33 Enroll and engross to conform

34 Amend title to conform

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